Astoria DC

astoriadc.com

NOODLES AND SOUP

担担面 DAN DAN NOODLES

Pork, peanuts, chili oil, garlic, scallion, sesame, pickled mustard greens, Da Xi Bei Gun gun [illegible]les.

single $16 | double $26

牛肉面 BEEF NOODLES

Sliced beef with garlic, scallion, chili, sesame, with hand pulled belt noodles.

Vega[illegible]ption avili-[illegible]le

single $20 | double $32

小面 LITTLE NOODLES

Chick peas, fried pork, peanut, scallions, skinny noodles. Spicy and numbing.

$19

羊肉汤 LAMB SOUP

Sliced lamb, cilantro in lamb stock.

Double Pulled Noodles

$20

清醒汤 SOBER SOUP

Pork wontons, fried pork, cilantro, chicken and pork stock.

$16

- Spicy Optional -

红油抄手 CHILI WONTONS

Pork wontons topped with chili oil, cilantro and scallions.

$17

Panda Gourmet

Panda Gourmet

4.2 ★★★★☆ (457) · $

Chinese restaurant

Directions | Save | Nearby | Send to your phone | Share

RESERVE A TABLE | ORDER ONLINE

Basic cafe surroundings with a full bar where spicy Sichuan fare comes from a big menu.

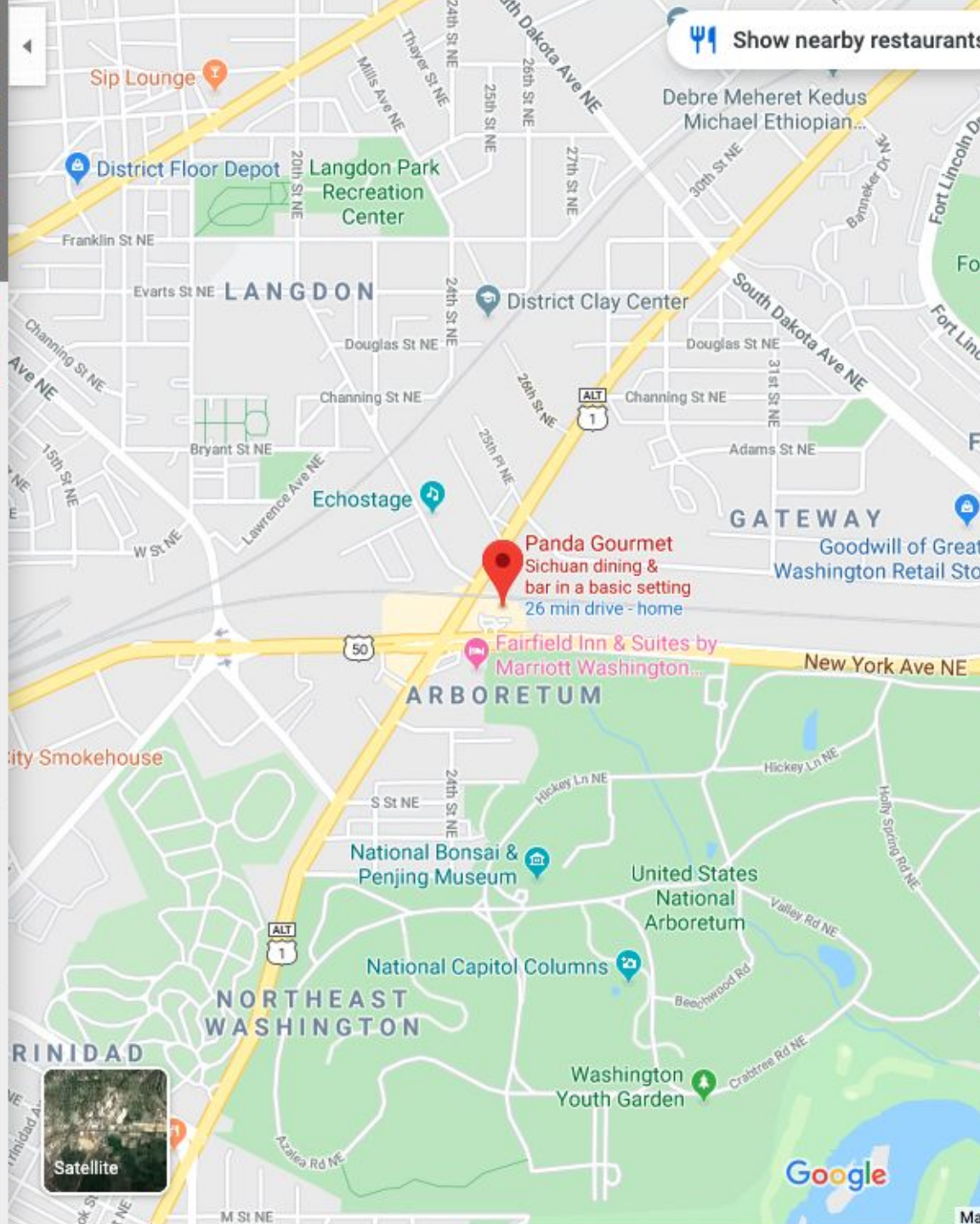
Late-night food · Comfort food · Quick bite

You visited 3 years ago

2700 New York Ave NE, Washington, DC 20002

W29H+5M Washington, District of Columbia

pandagourmetonline.com



Ambiguity

1st Quiz

Actus Reus

Part 1: The Voluntary Act Requirement

MPC Section 2.01

1. A person is not guilty of an offense unless his liability is based on conduct which includes a voluntary act or the omission to perform an act of which he is physically capable.
2. The following are not voluntary acts:
   a. a reflex or convulsion
   b. a bodily movement during unconsciousness or sleep
   c. conduct during hypnosis or resulting from hypnotic suggestion
   d. a bodily movement that otherwise is not a product of the effort or determination of the actor, either conscious or habitual.

Policy Rationale

The Policy Rationale

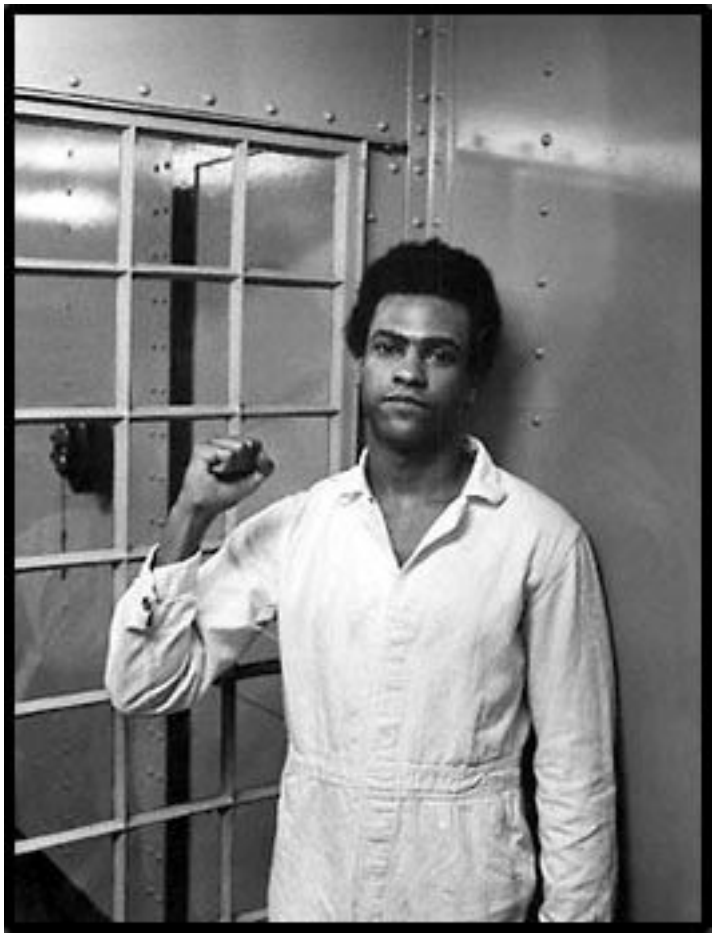
Easy Case

External physical compulsions of this sort run afoul of the “voluntary act” requirement.

But...

...what about internal compulsions?

People v. Newton



In Oakland County Jail,
1967

Easy Case

If a defendant can present evidence of unconsciousness that would negate the charge, then they are entitled to an instruction to that effect.

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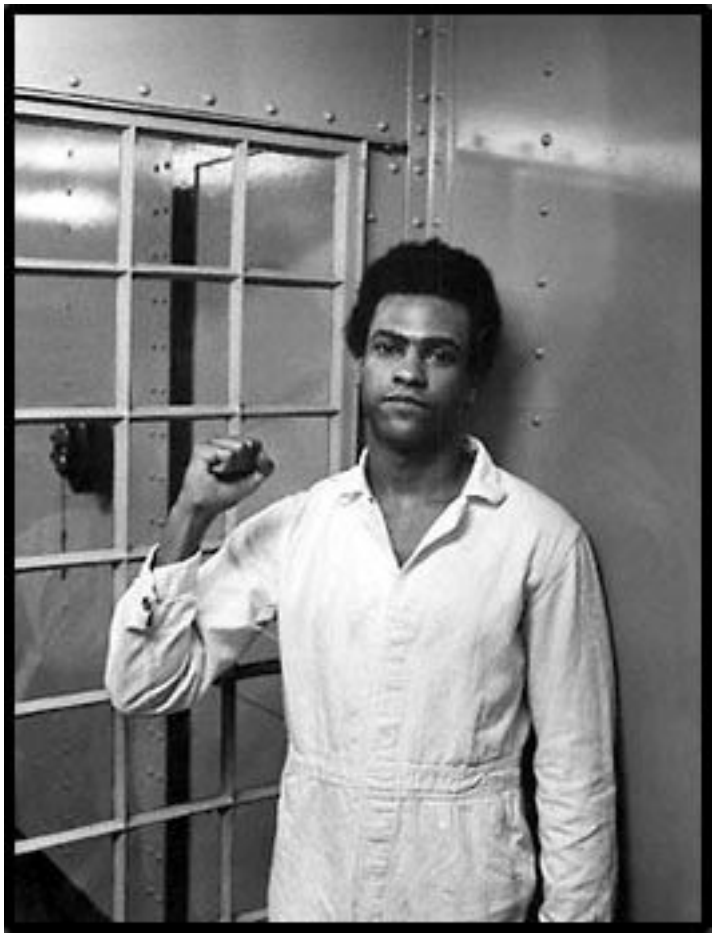
People v. Newton



In Oakland County Jail,
1967

Harder Case

If a person is experiencing a psychotic break with reality, can they also be considered “unconsciousness” in the sense that they have lost “voluntary” control over their actions?

People v. James

1. What did Dennis James do?
2. Was was the verdict at trial?
3. Why was he contesting his not-guilty verdict?

People v. James

1. Insanity defense will be later in the semester. Don’t worry overly about it now.
2. As a practical matter, however, not-guilty by reason of insanity and not-guilty due to unconsciousness are distinct.

People v. Newton Hypo

Newton did not plead (temporary) insanity as a defense. Knowing what you know now, would you have advised him to do so?

Jacobs v. Commonwealth

Jacobs v. Commonwealth

The phlegmatic man may be moved to anger as well as the most nervous; the only difference is that it requires more to affect the one than the other; but when passion is once aroused in either, it is the same unreasoning and unreasonable power. Why then should it not excuse crime in the one as well as in the other? If the murder of the latter may thus be reduced in degree, why not that of the former?

Status or Conduct?

Powell v. Texas (1968): being drunk in public is *conduct*. White suggests a possible exception for homeless.

Manning v. Caldwell (2019): punishing homeless for being “habitual” drunkards is unconstitutionally vague and punitive under the 8th Amendment.

City of Grants Pass v. Johnson (2024): Camping or sleeping in public is conduct that may be criminalized. Sotomayor dissent: sleeping in public is an involuntary biological necessity for the homeless.

Grants Pass Hypo

Could an exhausted homeless person who collapses into sleep claim unconsciousness as a defense?

Martin v. State

Beltz v. State

If Martin cannot be prosecuted for being drunk in public if his appearance in public was not voluntary, how can Beltz be prosecuted for possessing contraband in a correctional facility when his presence there was involuntary?

Time Shifting The Voluntary Act

If Martin cannot be prosecuted for being drunk in public if his appearance in public was not voluntary, how can Beltz be prosecuted for possessing contraband in a correctional facility when his presence there was involuntary?

NUGEN'S RANCH

About Us

Alaska Addiction Rehabilitation Services, Inc. (AARS) is one of the oldest adult residential substance abuse treatment programs in Alaska, established in 1982 by Leonard and Henrietta Nugen.

AARS provides its clients with work-therapy and life-skills training. The farm's greenhouse flowers, vegetable fields, and hay production not only serve the community but also provide AARS clients with opportunities to learn about farming and develop a sense of self-worth during their recovery.

AARS relocated its treatment program from the Palmer-Wasilla Highway in Wasilla to Point Mackenzie in 2012, where it now spans 116 acres. The property, known as Nugen's Ranch, is home to AARS.

Today, AARS also markets "Nugen's Ranch" as a brand name for its produce and products. Our produce can be found for sale at Palmer's Friday Fling, Wasilla Market, and at our roadside stand in front of our property on Point Mackenzie Road. Our eggs are also available for purchase at Pet Zoo.

Time Shifting The Voluntary Act

This makes a lot of sense when trying to combat drunk driving. To this end, many jurisdictions have codified this particular application to vehicular homicide.

Burden of Proof

Majority rule: D presents evidence supporting the inference of unconsciousness; P must prove consciousness beyond reasonable doubt.

Minority rule: D must prove unconsciousness by preponderance of the evidence.

Negative v. Positive Defenses

There are two kinds of defenses:

1. **NEGATIVE:** The defendant raises reasonable doubt regarding any of the elements of the offense.
2. **AFFIRMATIVE:** The defendant proves by a preponderance of the evidence that they were defending themselves, were under duress, were justified, were insane, etc.

State v. Ireland (Ohio 2018)

By shifting the unconsciousness defense related to the voluntary act requirement from a *negative* to *affirmative* defense, Ohio is shifting the defense of involuntariness from "reasonable doubt" to "preponderance of the evidence."

Preview of Causation

The defendant's act must be …

1. The "but for" cause of the forbidden result. (D's act is necessary to the result.)

2. The "proximate" cause of the forbidden result. (Forbidden result was a *reasonably foreseeable* consequence of D's act).